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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX, residing in the Municipality of
Monterotondo (hereinafter, the "Municipality"), reported that "in the center of the Municipality [...] three
distinct
compactors (bins for the separate collection of
household waste) have been installed on public land for
the disposal of waste by private citizens" and that "each device is equipped with

surveillance cameras connected to the Municipality [...]” complaining that “the three devices are lacking general informational signage placed before the range of action of the cameras.”

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), the Municipality, with note of XX (prot. n. XX), stated, in particular, that: “the image detection system [...] was not conceived as a 'video surveillance system' but as a 'security alert' system through photographic detection in motion”; “it is not [therefore] a 'video surveillance device used for the control of the methods of disposal of urban waste’”; “the Ecological Stations [...] are 3 (three) and have been active since December 2020[;] moreover, regarding the specific area in which they have been installed (Historic Center), the residents who use them are estimated to be around one thousand out of approximately 41,000 in the entire district”; “the equipment of the 'security alert' system, chosen by APM [i.e., the 'Special Company to which the Municipality of Monterotondo has entrusted the complete management of the service and its security' – hereinafter, 'APM' or the 'Company'], has become indispensable given the particularity of the area in which they are located, which is heavily frequented by local micro-crime that has been carrying out continuous episodes of vandalism for some time now, but above all for the security of the facilities, which are very costly”; “regarding video surveillance, the Municipality has a specific Regulation recently approved (Resolution CC n. XX of XX), appropriately published on the municipal website”; “in light of the characteristics of the system [...], it was not deemed necessary to affix any informational sign. The Municipality, regarding the video surveillance systems, has installed regular signage [...], which is also placed close to the 'Historic Center' area where the three Ecological Stations are located”; “the Municipality has published the extended information on video surveillance on its website”; “a specific 'Preventive Authorization pursuant to Article 8, paragraph 3 of the regulation for the exercise of similar control requested by A.P.M. prot. XX XX, XX' was formalized with Resolution of the Municipal Executive n. XX of XX [...] within which there is (following request prot. XX of XX, received at the Entity's prot. n. XX of XX) the specific authorization for the activation of the following procedure: 'Supply, installation, and installation of n. 3 computerized ecological stations for the differentiated disposal of waste, through direct assignment, pursuant to Article 36 paragraph 2 letter b) of Legislative Decree 50/2016 and subsequent amendments.' [...] APM assumes the role of 'Responsible [...] for the Processing' and as such has been indicated in the appointment [...]”; “The Municipality [...] requested APM to apply, as a precautionary measure, appropriate explanatory signage regarding the ‘potential’ treatment [...]”. In a note from APM, attached to the response

provided by the Municipality, the company stated, in particular, that: “in December 2020 APM [...] following authorization granted by the Municipal Council (DGM no. XX of XX), made operational 3 Ecological Stations for the separate collection of waste, [...] located in the municipal historic center”; “the aforementioned Ecological Stations are each equipped with 4 ‘security’ recording devices that operate through motion detectors, to allow for daytime and nighttime verification limited to significant events [...]”; “the purpose of equipping these devices is essentially related to a specific function, which is that of a ‘security alert’ aimed at: A) preventing/limiting [...] damage to the surrounding urban environment and to individuals, resulting from potential phenomena, such as fire or combustion of waste contained within the ecological stations; B) minimizing risks of harm to users depositing waste, resulting from potential malfunctions of the mechanical components of the ecological stations”; “the installed devices have a storage capacity limited to a maximum of 24/30 hours, after which the images are overwritten and the settings [...] have been configured to record movements lasting up to 15 seconds (maximum)”. In response to a further request for information from the Authority (see note prot. no. XX of XX), the Municipality, in a note dated XX (prot. no. XX), stated, in particular, that: “the Municipality [...] informed APM to cease the treatment, at least pending the definition of the [...] procedure and that, therefore, as of today, the system has been turned off and is about to be removed”; “the recording devices are equipped with a PIR motion sensor, a twilight sensor, and an illuminator with IR LEDs at 850 nm. The PIR sensor allows for the recording of a moving photo (setting specifically made for frames lasting a maximum of 15 seconds each) only when motion is detected [...]. The PIR system is not able to distinguish between acts of waste deposition and vandalism, but it activates only within the field of view of the lens and therefore in very close proximity to the Ecological Station”; “the images are recorded for a maximum of 15 seconds on an SD card located inside the recording device (local memory). It is not possible for anyone to instantly view what has been recorded. It is noted that, to date, there has never been a need to view the recorded images as there have never been any incidents of vandalism against the ecological stations”; “the device does not allow for the use of encryption, but once the SD CARD is removed from the device, access to the images contained therein can only be obtained through authentication via account and password. No further technical and/or organizational measures have been adopted by the Authority”; “since the date of installation of the devices, the waste disposal systems have not been affected by fires or other damaging events, presumably also due to the deterrent nature of the installed recording devices”; “the update of the information notice is from XX” and it has been published on the website “<https://www.comune.monterotondo.rm.it/privacy-polizia-locale>”; regarding the data protection contract signed with APM, “in fact, the date of the document is represented by the outgoing protocol number (XX of XX) while it is confirmed that it is unsigned by APM. [The Municipality has] proceeded to update this appointment as well [...]”; Subsequently, in a note dated XX (prot. no. XX), the Municipality filed a note from APM (prot. no. XX of XX), in which it confirmed that it had uninstalled the video devices in question. In a note dated XX (prot. no. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, for having the Municipality: failed to provide the interested parties with information on the processing of personal data of the first and second level, in a manner not compliant with the principle of “lawfulness, fairness, and transparency”, in violation of Articles 5, paragraph 1, letter a), 12, paragraph 1, and 13 of the Regulation; until XX, failed to enter into, as the data controller, a data protection contract with APM, which acted as the data processor, on behalf of and in the interest of the Municipality, within the scope of an activity outsourced by it, as well as for having entered into, on XX, a data protection contract with APM that does not comply with the requirements set forth by data protection legislation, in violation of Article 28, paragraphs 3 and 9, of the Regulation; failed to adopt technical and organizational measures suitable to ensure a level of security appropriate to the risk, in violation of Articles 5, paragraph 1, letter f), and 32 of the Regulation. With the same note, the Municipality was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

**With note of XX (prot. n. XX), the Municipality has presented a defensive memorandum, declaring, in

particular, that:**

1. The processing through the video devices in question was carried out “for a verified period from March 2021 to June 2022,” as emerged from checks carried out by APM;
2. More specifically, “the Ecological Stations [in question] are 3 (three) and remained active from March 2021 until June 9, 2022”;
3. The Municipality “also in light of the characteristics of the system put in place to protect the Ecological Stations, did not consider it necessary to post informational signs,” as the “image detection system [...] was not designed as a ‘video surveillance system’ but rather as a ‘security alert system’ through photographic detection of movements close to the Ecological Stations (1-1.5m distance from the system)”;
4. “[...] before accessing the Historic Center, there are nonetheless informational signs (of the first level), related to the municipal video surveillance system that certainly informs citizens that they are transiting in areas where they may potentially be recorded by video devices”;
5. Therefore, “no one can enter the ‘Historic Center’ (where the Ecological Stations are located) without passing by or encountering the signage related to the first-level information of the municipal video surveillance systems”;
6. “APM is a Special Company subject to strict ‘similar control’ by the Municipality [...] and is an instrumental entity of the same”;
7. “APM, established pursuant to art. 114 Tuel as a center for the attribution of legal relations distinct from the local entity and with entrepreneurial autonomy, is an instrumental entity of the administration, linked to it by close ties related to the formation of the bodies, direction, control, and supervision; through the special company, in fact, the aforementioned Entity pursues its institutional purposes, inherent in the provision of a public service, according to principles of economy, effectiveness, and managerial efficiency”;
8. “Special companies, just like in-house companies, as recently affirmed by the same United Sections of the Court of Cassation (Judgment of November 25, 2013, n. 26283, reaffirmed with Order of December 2, 2013, n. 26936), can be considered as entities that represent true articulations of the Public Administration, given that the bodies of these are subject to hierarchical constraints referring to the Public Administration, whose executives are thus linked to the Public Administration by a service relationship as occurs for the executives in charge of services directly provided by the public entity”;
9. “The qualification of the special company as an instrumental entity of the Local Entity, therefore, reveals the existence of a very close and inseparable connection between the company and the Municipality”;
10. “It is evident that between the Municipality [...] and APM there was, upstream, a specific contract by virtue of which the activation of the ‘security alert’ mode was agreed upon”;
11. “APM, despite the lack of signature on the initial appointment produced in the records or in light of the updated one signed by both parties involved (Prot. n. XX of XX), has always carried out the activities assigned to it in compliance with the signed contracts, respecting the confidentiality of the interested parties, according to the instructions received from the Data Controller (who, moreover, has full managerial control)”;
12. “The Responsible Party [...], therefore, has always observed all the mandatory elements referred to in Article 28 of the Regulation and the instructions provided by the Data Controller [...]”;
13. “The service contract stipulated upstream with APM, therefore, as well as the Resolution [...] n. XX of XX [...] complete any gap of the initial lack of signature of the first appointment mentioned above as it is indisputable that a bond has been established between the data controller and the data subject since, in any case, albeit with a reference ‘sic et simpliciter’ to the norm that constitutes its essential content, formal binding obligations have been placed on the data processor since 2019 (cf. Appointment from the Municipality to APM not signed by the latter due to mere oversight - prot. XX of XX)”;
14. “Even the principle of ‘Integrity and confidentiality’ [...] is respected, as the recordings were potentially accessible only following access with a username and password that were exclusively available to authorized persons”;

15. "In all 16 months of execution of the processing (photo-recording), there has never been a need to view the images [as a result of] episodes of vandalism against the 3 ecological stations";
16. "The images stored by the recording systems were saved within SD CARDS allocated therein, which could only be accessed through authentication with a specific account and password";
17. "The equipment of each ecological station with 4 cameras placed on its sides serves to at least implement the physical security measures to be considered";
18. "The danger of physical removal of the SIM card in which the data were stored could not have [materialized] so easily [...], as the removal of the same] could not have occurred without triggering the alert of the other camera [...] which would have alerted the operator after which the SIM could have been easily blocked";
19. "Although lacking the aforementioned encryption, the security of the installed video surveillance system included both the physical security of all the

****Components of the system that control access to registration data****;

"the data recorded by the cameras was, in fact, saved on the memory card (SD CARD) that the cameras were equipped with, and it was installed in an inaccessible compartment of the camera's casing. In particular, access to the memory card was only possible for technical maintenance activities, which would in any case involve various and complicated steps such as: disassembling the camera from the appropriate mounting system (using a ladder and dedicated tools); subsequently opening the battery compartment; removing the battery pack and finally extracting the memory support";

"in the event of an attempted tampering with the card or devices, a specific 'alert system' was provided, which would be followed by an immediate blocking of the card and, consequently, an interruption of processing";

"regarding technical security measures, the computer system was equipped with access only through the activation of user accounts with username and password";

"the protection of the transmission of videos through secure communication channels resistant to interception was implemented (and in fact, there was no sending or transmission of the videos. These were made available to the data controller through access to the application with personal username and password)";

"access control ensured that only authorized persons could access the system and data in premises and offices protected from unauthorized third-party access."

****3. Outcome of the investigative activity. ****

****3.1 The processing of personal data carried out by the Municipality. ****

Based on what emerged during the investigation, it is established - and not disputed - that the Municipality, as the data controller, utilizing the support of APM, which acted as the data processor, carried out the processing of personal data from March 2021 to June 9, 2022 (see note from the Company of XX, prot. n.XX, on file), through the use of video devices installed near three ecological stations (four devices for each station), in order to prevent and detect acts of vandalism or events relevant to the safety of the facilities or the safety of users.

The devices in question, which were activated by motion sensors, had a storage capacity limited to a maximum of twenty-four/thirty hours, after which the images were automatically overwritten, being able to record, from time to time, both during the day and at night, images related to an area confined to one and a half meters from the facility, with a maximum duration of fifteen seconds, on a "secure digital" (SD) type memory, located inside each video device.

****3.2 Transparency of the processing****

In compliance with the principle of "lawfulness, fairness, and transparency," the data controller must adopt appropriate measures to provide the data subject, before starting the processing, with all the information required by the Regulation in a concise, transparent, intelligible, and easily accessible form, using simple and clear language (Articles 5, par. 1, lett. a), 12 and 13 of the Regulation).

When video devices are used, the data controller, in addition to providing the first-level information through the placement of warning signage near the area under video surveillance, must also provide the data subjects with "second-level information," which must "contain all the mandatory elements pursuant to Article 13 of the [Regulation]" and "be easily accessible to the data subject, for example

through a complete information page made available at a central hub [...] or posted in an easily accessible location” (“Guidelines 3/2019 on the processing of personal data through video devices” of the European Data Protection Board, adopted on January 29, 2020, particularly par. 7; but see also the “Provision on video surveillance” of the Guarantor of April 8, 2010, doc. web n. 1712680, particularly par. 3.1; lastly, see the FAQs of the Guarantor regarding video surveillance, doc. web n. 9496574, n. 4; cf. also provisions of January 11, 2024, n. 5, doc. web n. 9977020; October 20, 2022, n. 341, doc. web n. 9831369; April 28, 2022, n. 162, doc. web n. 9777974; April 7, 2022, n. 119, doc. web n. 9773950; September 16, 2021, n. 327, doc. web n. 9705650 and March 11, 2021, n. 90, doc. web n. 9582791).

The first-level information (warning sign) “should communicate the most important data, such as the purposes of the processing, the identity of the data controller, and the existence of the rights of the data subject, along with information on the most significant impacts of the processing” (Committee Guidelines, cited, par. 114). Furthermore, the signage must also contain those pieces of information that could be unexpected for the data subject. This could include, for example, the transmission of data to third parties, particularly if located outside the European Union, and the retention period. If such information is not indicated, the data subject should be able to rely on the fact that there is only real-time surveillance (without any data recording or transmission to third parties) (Committee Guidelines, cited, par. 115). The first-level warning signage must contain a clear reference to the second level of information, for example by indicating a website where the text can be consulted. of the extended notice.

That said, it is noted that during the investigation, the Municipality declared that “in light of the characteristics of the system put in place to protect the Ecological Stations [...] it was not deemed necessary to post any informational sign.”

As evidenced in the documents, the Municipality had therefore not provided a first-level notice (warning sign) to the interested parties regarding the processing of personal data carried out through the video devices in question.

In this regard, the assessment made by the Municipality regarding the non-existence of the necessity to provide a notice to the interested parties is incorrect, based on the assumption that the “image detection system [subject of the complaint] was not designed as a ‘video surveillance system’ but rather as a ‘security alert system.’” This is because such a system, regardless of the specific purpose pursued, involved the acquisition and recording of footage depicting natural persons, an activity that undoubtedly constitutes the processing of personal data.

It should be noted that the Regulation defines “personal data” as “any information relating to an identified or identifiable natural person (‘data subject’)” (art. 4, par. 1, n. 1). The use of the expression “any information,” also used in the analogous definition in art. 2, lett. a), of Directive 95/46, “reflects the objective of the Union legislator to attribute a broad meaning to this notion, which is not limited to sensitive or private information, but potentially includes any type of information, both objective and subjective [...] provided that it is ‘concerning’ the data subject. Regarding this last condition, it is satisfied if, by reason of its content, purpose, or effect, the information is connected to a specific person” (Court of Justice of the European Union, judgment of December 20, 2017, C-434/16, Nowak, para. 34).

Based on the case law of the Court of Justice of the European Union regarding the processing of personal data through video devices, it is well established that the image of a person's face constitutes personal data and that the recording of such an image involves the processing of personal data (see judgments of October 20, 2022, *Koalitsia "Demokratichna Bulgaria - Obedinenie"*, C 306/21, para. 32, February 14, 2019, C 345/17, *Buivids*, paras. 31 and 32, and December 11, 2014, C 212/13, *Ryneš*, paras. 22 and 25), with the circumstance that the data controller does not know the identity of the person in question or does not have information that would allow them to identify the same being entirely irrelevant (cf. recital 26 of the Regulation, which specifies that, to determine the identifiability of a person, it is appropriate to consider all means that not only the data controller but also a third party can reasonably use to identify that natural person directly or indirectly; in case law, see Cass. Civ., judgment no. 17440 of September 2, 2015, where it is stated that “it does not seem possible to doubt that the image constitutes personal data [...] being an immediately identifiable data point for a person,

regardless of their notoriety”). It is, in fact, theoretically possible to trace the identity of a person from the image of their face, particularly using information that is in the possession of third parties (for example, public or private databases) or publicly available (for example, social networks), considering that “for a data to be qualified as ‘personal data’ [...] it is not required that all the information that allows identifying the data subject be in the possession of a single person” (C 434/16, Nowak, cited, para. 31; see also judgment of October 19, 2016, Breyer, C 582/14, para. 43; see also provision of April 13, 2023, no. 22, of April 13, 2023).

This is also implicitly confirmed in recital 51 of the Regulation, when it states that “the processing of photographs should not systematically constitute the processing of special categories of personal data, as they fall within the definition of biometric data only when processed through a specific technical device that allows the unique identification or authentication of a natural person,” from which it follows that the image of a person, such as that depicted in a photograph or video, constitutes personal data, although it is not systematically a personal data related to special categories as per art. 9 of the Regulation.

Regarding the further defense put forward by the Municipality, concerning the circumstance that the informational signs related to the distinct municipal video surveillance system could be considered sufficient to inform the interested parties of the processing carried out, it should be noted that they—placed “close to the Historic Center” and not near the aforementioned ecological stations—referred to the different purpose of urban security, namely the prevention of widespread and predatory criminal phenomena (cf. art. 5, par. 2, lett. a), of Legislative Decree February 20, 2017, no. 14), and were therefore inadequate to ensure the transparency of the distinct and specific processing. The Municipality has also not proven that it provided the interested parties with a complete notice regarding the processing of their personal data through the video devices in question, having limited itself to stating, in response to specific requests for clarification from the Authority, that “the Municipality has published the extended information on video surveillance on its website” (note of XX, cited) and that “the update of the information is of XX” (note of XX), a date subsequent to that of the complaint submission, therefore the Entity has neither declared nor demonstrated that the date on which such information would have been made available to the interested parties was attributable to before the start of the processing, that is, before March 2021. It is also noted that the information produced in the records is devoid of any temporal reference, making it impossible to place this document in time in any way.

The processing of the personal data of the interested parties, captured by the video devices in question, was therefore carried out in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 12, paragraph 1, and 13 of the Regulation.

3.3 The relationship with the data processor

Pursuant to Article 28, paragraph 3, of the Regulation, “processing by a processor shall be governed by a contract or other legal act under Union law or the law of the Member States, which binds the processor to the controller, which stipulates the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, the obligations and rights of the controller,” and which provides for all the commitments required by the same Article 28, paragraph 3, of the Regulation (see recital 81 of the Regulation).

The contract or other legal act must be “in writing, including in electronic form” (Article 28, paragraph 9, of the Regulation).

In this case, the Municipality, as the data controller, outsourced to APM the activity of installing and managing the devices in question, entrusting it with the processing of the captured images, without, however, previously entering into a data protection contract pursuant to Article 28 of the Regulation.

The data protection contract prepared by the Municipality, registered under protocol number XX of XX, and filed in the records during the investigation, is, in fact, signed only by the Municipality. In this regard, the Municipality has stated that APM did not sign it “due to mere oversight.”

Only on XX, that is, after the initiation of the investigation by the Authority and a few days before the date on which the processing ceased (see APM's note of XX, protocol number XX), did APM sign a data protection contract with the Municipality, registered under the Entity's protocol on XX (number XX).

That said, it is noted that, as clarified by the European Data Protection Board, "since the regulation clearly establishes the obligation to enter into a written contract, if no other relevant legal act is in force, there is a violation of the [Regulation], or of 'Article 28, paragraph 9, of the [Regulation].'" Considering that "both the controller and the processor are responsible for ensuring the existence of a contract or other legal act governing the processing," the competent supervisory authority "may impose an administrative fine on both the controller and the processor" ("Guidelines 07/2020 on the concepts of controller and processor under the GDPR," adopted by the European Data Protection Board on July 7, 2021, paragraph 103).

Therefore, where, as in this case, there exists "a controller-processor relationship [...] even in the absence of a [valid] written processing agreement" - since the entity processing the data is actually processing it not for its own purposes but on behalf of the contracting entity, within the scope of an activity outsourced by it and in the execution of a service contract or other similar legal relationship in place between the parties (see the definition of "processor" in Article 4, paragraph 1, number 8, of the Regulation) - "this implies [...] a violation of Article 28, paragraph 3, of the [Regulation]" (ibid., paragraph 103).

The Municipality, as the data controller, has, instead, failed to enter into a data protection contract with APM until April 19, 2022, which – as a special company and instrumental entity of the Municipality, established under Law 142/1990, also for the management of urban hygiene services - was acting in fact as the processor regarding the images collected through the video devices subject to the complaint, in violation of Articles 28, paragraphs 3 and 9, of the Regulation.

That being said, it is noted that the data protection contract, which was belatedly entered into between the parties on XX, was, in any case, not suitable to meet the requirements set forth by European data protection legislation.

It merely replicated the provisions required by Article 28, paragraph 3, of the Regulation, without making any reference to the specific processing of personal data entrusted by the controller to the processor (i.e., the management of the images acquired through the video devices in question) and without the controller, that is, the Municipality, having given the processor, that is, APM, any specific instructions regarding the processing in the data protection contract, including with regard to the specific technical and organizational measures aimed at ensuring a level of security appropriate to the risk, which the processor...

should have been adopted in this context. The data protection contract entered into between the data controller and the processor "should [, instead,] not merely reiterate the provisions of the [Regulation], but rather provide more specific and concrete information on how the requirements will be met and the level of security provided for the processing of personal data subject to the agreement." Therefore, "the contract between the parties should be drafted taking into account the specific data processing activity," regulating, in particular: "the subject matter of the processing [...] with sufficient specifics so that the main subject of the processing is clear"; "the duration of the processing"; "the nature of the processing: the type of operations performed in the context of the processing (for example: 'capture', 'recording', 'storage of images', etc.) and the purpose of the processing [...]", provided that, "such description should be as complete as possible, depending on the specific processing activity, so as to allow external parties (for example, supervisory authorities) to understand the content and risks of the processing entrusted to the relevant processor"; "the type of personal data [, with the specification that] this element should be specified in as much detail as possible"; "the categories of data subjects [, with the specification that] this aspect should also be indicated in a rather specific manner" (ibidem, sec. 1.3).

Nor can such elements be otherwise inferred from a joint reading of the data protection contract and

other agreements in place between the parties, given that the data protection contract in question does not contain any reference – even by relation – to the act governing the underlying supply relationship that bound the Municipality to the Company. In the preamble of the data protection contract, it is stated, in fact, quite generically, that "the Municipality of Monterotondo, as the Data Controller, avails itself of your services based on a specific contractual relationship in place and therefore, in this capacity, your company acts as the 'Data Processor', so that the data protection contract can abstractly refer to a plurality of service supply contracts or other legal acts that are not objectively identifiable.

Therefore, the data protection contract entered into on XX between the Municipality and APM cannot be considered compliant with the requirements set forth by the data protection regulations, having, therefore, the Municipality acted, in the period of time between XX and XX, the date on which the video devices in question were deactivated, in violation of Article 28, paragraph 3, of the Regulation.

3.4 Security of Processing

Article 5, paragraph 1, letter f), of the Regulation establishes that personal data must be "processed in a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage" (principle of "integrity and confidentiality").

In application of this principle, Article 32 of the Regulation, concerning the security of processing, provides that "taking into account the state of the art and the costs of implementation, as well as the nature, subject matter, context, and purposes of the processing, as well as the risk of varying probability and severity for the rights and freedoms of natural persons, the data controller and the data processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk [...]" (paragraph 1) and that "in assessing the appropriate level of security, particular consideration shall be given to the risks presented by the processing that arise in particular from the destruction, loss, alteration, unauthorized disclosure, or access, in an accidental or unlawful manner, to personal data transmitted, stored, or otherwise processed" (paragraph 2) (cf. recital 83 of the Regulation).

It should be noted, in this regard, that the controller has a "general responsibility [...] for any processing of personal data that it has carried out directly or that others have carried out on its behalf," and the controller must "implement adequate and effective measures [and] demonstrate compliance of the processing activities with the [...] Regulation, including the effectiveness of the measures" adopted (recital 74 of the Regulation), even when relying on a processor to carry out certain processing activities, to which it must provide specific instructions, including regarding security (recitals 79 and 81 and Articles 28, paragraph 3, letter c) and 32 of the Regulation). The controller remains, therefore, responsible for the implementation of appropriate technical and organizational measures and must ensure and be able to demonstrate that the processing is carried out in accordance with the Regulation (Articles 5, paragraph 2, and 24 of the Regulation; cf. the "Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR," cited, paragraph 2.1.4, point 41).

That said, it is noted that, during the investigation, the Municipality stated that "the device does not allow the use of encryption but, once the SD CARD is extracted from the device, access to the images contained therein can only be obtained through authentication via account and password. No further technical and/or organizational measures have been adopted by the Entity."

Despite the images captured by the video devices in question being stored locally on a memory support that is abstractly removable from anyone, the Municipality has therefore not adopted data encryption techniques (see art. 32, par. 1, lett. a) of the Regulation) or other techniques suitable to prevent the risk of unauthorized access to the recorded images prior to the possible removal of the memory support by the authorized personnel and the transfer of data to a computer system with protected access via username and password.

As stated by APM, the recorded footage in the memory "was made available to the Data Controller through access to the application with a personal username and password"; therefore, the

authentication via username and password pertained to the IT application used by the Municipality for viewing the images and not to the memory card itself, which, if removed by unauthorized third parties, would have allowed access to the recorded, unencrypted footage without any prior authentication.

Regarding the defense argument, based on which, in the event of possible attempts to remove the removable memory by unauthorized third parties, the camera system would have generated an alert, allowing an operator to "activate the SIM lock" and determine the "blocking of processing," it is noted that this would not have affected the images already recorded in the aforementioned memory, resulting only in the interruption of subsequent recording activities.

Also, the fact that such memory was "installed in an inaccessible compartment of the camera's casing," while suitable to mitigate possible risks of unauthorized access, did not entirely exclude them. Access would, in fact, "involve several and complicated steps" but would still have been abstractly possible.

For these reasons, it is established that, in relation to the processing of images collected through the video devices subject to complaint, the Municipality has failed to adopt technical and organizational measures suitable to ensure a level of security appropriate to the risk, in violation of articles 5, par. 1, lett. f), and 32 of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the veracity of which may be subject to accountability under art. 168 of the Code - although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow the archiving of the present procedure, as none of the cases provided for by art. 11 of the Garante Regulation no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and it is noted that there has been a failure to comply with the data protection regulations, as the Municipality processed personal data through video devices in violation of articles 5, par. 1, lett. a) and f), 12, par. 1, 13, 28, pars. 3 and 9, and 32 of the Regulation.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, art. 83, par. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to articles 5, 12, and 13 of the Regulation, are subject to the sanction provided for by art. 83, par. 5, of the Regulation, as also referenced by art. 166, par. 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering that the conduct has exhausted its effects, since the Municipality has declared to have uninstalled the video devices in question, the conditions for the adoption of further corrective measures under art. 58, par. 2, of the Regulation do not apply.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i and 83 of the Regulation; art. 166, par. 7, of the Code). The Garante, pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to article 166, par. 7, of the Code" (art. 16, par. 1, of the Garante Regulation no. 1/2019).

In this regard, considering art. 83, par. 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of

each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

Considering that:

although the processing involved a considerable number of data subjects (estimated by the Municipality at about 1,000) and lasted for a considerable period, from March 2021 to June 9, 2022, the video devices used by the Municipality

****non erano idonei a comportare un monitoraggio****

****sistematico dell'area sottoposta a controllo**** (atteso

che gli stessi si attivavano solo in caso di rilevazione di movimento, effettuando registrazioni della durata massima quindici secondi) e, come dichiarato dal Comune, le immagini registrate non sono state mai state visionate e utilizzate in conseguenza di eventi rilevanti per la sicurezza degli impianti e degli utenti (cfr. art. 83, par. 2, lett. a), del Regolamento);

****ancorché il Comune e APM non avessero formalmente****

****stipulato un contratto sulla protezione dei dati,****

APM, azienda speciale del Comune, sottoposta a controllo analogo ed ente strumentale dell'Ente, aveva stipulato un contratto di servizio con il Comune, il quale aveva predisposto e sottoscritto un accordo sulla protezione dei dati, che solo per mera dimenticanza non è stato controfirmato da APM (cfr. art. 83, par. 2, lett. a), del Regolamento);

****sebbene i filmati venissero salvati su una memoria****

****rimovibile, senza l'adozione di tecniche di****

****cifatura, è ragionevole ritenere che, tenuto conto****

dell'occasionalità e della brevità delle registrazioni effettuate (durata massima di quindici secondi), nonché della circostanza che le stesse riprendevano aree pubbliche, la probabilità che avvenissero tentativi di rimozione non autorizzata, che avrebbero comportato complesse attività di manomissione dei sistemi, non fosse alta (cfr. art. 83, par. 2, lett. a), del Regolamento);

****la violazione ha carattere colposo, essendo originata****

****da errate valutazioni dell'Ente**** (cfr. art. 83, par. 2, lett. b), del Regolamento);

****la violazione non ha riguardato categorie particolari****

****di dati personali o dati personali relativi a****

****condanne penali e reati**** (cfr. art. 83, par. 2, lett. g), del Regolamento),

si ritiene che, nel caso di specie, il livello di gravità della violazione commessa dal titolare del trattamento sia basso (cfr. Comitato europeo per la protezione dei dati, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" del 23 maggio 2023, punto 60).

****Ciò premesso, si ritiene che, ai fini della****

****quantificazione della sanzione, debbano essere prese****

****in considerazione le seguenti circostanze attenuanti.****

il Comune ha offerto una buona cooperazione con l'Autorità nel corso dell'istruttoria, essendosi, altresì, attivato per porre fine alla violazione, prima chiedendo ad APM, a seguito della prima richiesta d'informazioni dell'Autorità, di "apporre, cautelativamente, un cartello/informativa breve sulla videosorveglianza nelle vicinanze delle tre Stazioni Ecologiche [...], nonché un'informativa estesa sul Vostro sito istituzionale" (v. nota prot. n. XX del XX, in atti) e poi di "interrompere, cautelativamente, ogni trattamento riguardante la videosorveglianza e lo smontaggio di tutti i sistemi di ripresa ivi allocati" (v. nota prot. n. XX del XX, in atti) (cfr. art. 83, par. 2, lett. f), del Regolamento);

****non risultano precedenti violazioni pertinenti****

****commesse dal Comune**** (cfr. art. 83, par. 2, lett. e), del Regolamento).

****In ragione dei suddetti elementi, valutati nel loro****

****complesso, si ritiene di determinare l'ammontare****

****della sanzione pecuniaria nella misura di euro 3.000****

**** (trecento) per la violazione degli artt. 5, par. 1, ****

****lett. a) e f), 12, par. 1, 13, 28, parr. 3 e 9, e 32****

****del Regolamento, quale sanzione amministrativa****

****pecuniaria ritenuta, ai sensi dell'art. 83, par. 1, ****

****del Regolamento, effettiva, proporzionata e****

****dissuasiva.****

****Tenuto conto che, come sopra rilevato, il trattamento****

****si è protratto per un esteso arco temporale, si****

****ritiene, altresì, che debba applicarsi la sanzione****

****accessoria della pubblicazione sul sito del Garante****

****del presente provvedimento, prevista dall'art. 166, ****

****comma 7 del Codice e art. 16 del Regolamento del****

****Garante n. 1/2019.****

****Si rileva, infine, che ricorrono i presupposti di cui****

****all'art. 17 del Regolamento n. 1/2019.****

****TUTTO CIÒ PREMESSO IL GARANTE****

dichiara, ai sensi dell'art. 57, par. 1, lett. f),

del Regolamento, l'illiceità del trattamento

effettuato dal Comune di Monterotondo per violazione

degli artt. 5, par. 1, lett. a) e f), 12, par. 1, 13,

28, parr. 3 e 9, e 32 del Regolamento, nei termini di

cui in motivazione;

****ORDINA****

al Comune di Monterotondo, in persona del legale

rappresentante pro-tempore, con sede legale in Piazza

A. Frammartino, 4 - 00015 Monterotondo (RM), C.F.

80140110588, di pagare la somma di euro 3.000

(trecento) a titolo di sanzione amministrativa

pecuniaria per le violazioni indicate in motivazione.

****Si rappresenta che il contravventore, ai sensi****

****dell'art. 166, comma 8, del Codice, ha facoltà di****

****definire la controversia mediante pagamento, entro il****
****termine di 30 giorni, di un importo pari alla metà****
****della sanzione comminata,****

****INGIUNGE****

al predetto Comune, in caso di mancata definizione della controversia ai sensi dell'art. 166, comma 8, del Codice, di pagare la somma di 3.000 (tremila) secondo le modalità indicate in allegato, entro 30 giorni dalla notificazione del presente provvedimento, pena l'adozione dei conseguenti atti esecutivi a norma dall'art. 27 della l. n. 689/1981;

****DISPONE****

ai sensi dell'art. 166, comma 7, del Codice, la pubblicazione del presente provvedimento sul sito web del Garante, ritenendo che ricorrano i presupposti di cui all'art. 17 del Regolamento del Garante n. 1/2019.

****Ai sensi degli artt. 78 del Regolamento, 152 del****
****Codice e 10 del d.lgs. n. 150/2011, avverso il****
****presente provvedimento è possibile proporre ricorso****
****dinnanzi all'autorità giudiziaria ordinaria, a pena****
****di inammissibilità, entro trenta giorni dalla data di****
****comunicazione del provvedimento stesso ovvero entro****
****sessanta giorni se il ricorrente risiede all'estero.****

Roma, 22 febbraio 2024

****IL PRESIDENTE****

Stanzione

****IL RELATORE****

Stanzione

****IL SEGRETARIO GENERALE****

Mattei